No. 5.

A MEASURE passed by the National Assembly of the Church of England.

To confer upon the Ecclesiastical Commissioners temporary power to give financial help for the provision of churches and other buildings for religious worship, and power to make better provision for the endowment of certain bishoprics: to amend and extend the provisions of the Ecclesiastical Leasing Acts: and to amend the Ecclesiastical Commissioners Measure, 1926, as to payment by the Ecclesiastical Commissioners of costs of certain legal proceedings. [29th May 1936.]

Temporary power to make grants towards payment of interest on loans for building churches, &c.

1.—(1) Subject to the provisions of subsections (2) and (3) of this section, the Ecclesiastical Commissioners for England (in this Measure referred to as " the Commissioners ") may from time to time make by resolution a grant or grants out of their common fund in such manner as they may deem most conducive to the efficiency of the Church of England for the purpose of discharging or assisting in discharging the interest payable in respect of any loan or loans made to any body or person in accordance with a scheme or schemes approved by the Commissioners either for the provision in populous parishes in England of new churches or other new buildings to be used for religious worship and parochial purposes, or for the enlargement of existing churches in such parishes and any sums so granted may be paid to such bodies or persons as the Commissioners shall in each case think proper.

(2) The total amount which shall be applied in any year in respect of such grants shall not exceed the sum of ten thousand pounds.

(3) The power conferred by this section shall cease and determine on the thirty-first day of October, nineteen hundred and fifty-seven.

Power to make schemes for re-endowing certain bishoprics.

2.—(1) The Commissioners may at any time, with such consent and subject to such approval as hereinafter prescribed, prepare and submit for confirmation to His Majesty in Council a scheme or schemes for transferring to the Commissioners any investments or other property of any description (save as hereinafter mentioned) held by them as or as part of the endowment fund of any of the bishoprics named in the Schedule hereto), and for the payment out of the common fund of the Commissioners in exchange for such transfer of a fixed annual income for the bishopric as a re-endowment thereof and for making any incidental provisions necessary or desirable for giving full effect to the proposed transfer and re-endowment.

(2) The power conferred by this section shall not extend or apply to the episcopal residence or to any fund specifically allotted to the provision or maintenance of the episcopal residence.

Consents to exercise of power.

(3) The said power shall only be exercised with the consent of His Majesty and the consent of the bishop for the time being of the diocese to which the scheme relates, and no scheme as aforesaid shall be submitted to His Majesty in Council in relation to such diocese save with the approval of—

(*a*) the Diocesan Board of Finance;

(*b*) the bishop for the time being of any and every contributory bishopric;

(*c*) the Cathedral Commissioners so long as they shall be in existence; and

(*d*) the cathedral council of the cathedral church of the diocese or other the consenting body of the said church for the purposes of the Cathedrals Measure, 1931. 21 & 22 Geo. V. No. 7.

Publication of order.

(4) When any scheme under this section shall have been confirmed by Order in Council, the Order in Council shall be published in the London Gazette and upon such publication the provisions of the scheme shall be effectual in law as fully as if they had been contained in this Measure.

Vesting of property transferred.

(5) Upon any scheme under this section becoming effectual all real and personal property thereby proposed

or directed to be transferred to the Commissioners shall vest in them without any further conveyance or assurance and shall be held by them as property the income from which is to be carried to the common fund of the Commissioners freed and discharged from all trusts previously affecting the same, including not only the primary trust for the endowment or benefit of the bishopric to which the scheme relates but also all further trusts in favour of any contributory bishopric or for the foundation of a dean and chapter or otherwise.

Determination of residuary trusts.

(6) Any scheme under this section may provide that all trusts and provisions in favour of any contributory bishopric or for the foundation of a dean and chapter shall determine and become void not only in respect of the property transferred by the scheme as provided by the last preceding subsection hereof, but also in respect of any other property which or the income of which then forms part of the endowment of the bishopric to which the scheme relates, and may further provide that such trusts shall not attach to or affect any property or income at any time thereafter becoming part of the endowment or income of that bishopric.

(7) In this section the expression " contributory bishopric " shall in relation to the endowment fund of any bishopric mean any other bishopric interested under any of the trusts of the said fund which take effect subject to the primary trust for the benefit of the bishopric to which the fund belongs.

Power to augment the income of certain bishoprics.

3.—(1) In any case where a bishopric has been re-endowed under the provisions of section 2 (1) of this Measure the provisions of section 3 (*b*) of the Ecclesiastical Commissioners Measure, 1926, shall cease to apply to such bishopric, and in any such case, and also in the case of the bishopric of Sodor and Man the Commissioners shall have power at any time or from time to time at their discretion and upon such terms and conditions as they shall think fit by instrument under their seal to grant out of their common fund in augmentation of the income of the bishopric such annual sum as they may deem expedient: Provided that no such augmentation shall exceed such amount as will raise the annual income of the bishopric (as estimated by the Commissioners at the date of the instrument of augmentation) to the sum of three thousand pounds exclusive of the annual value of the episcopal residence and of the annual income of any fund specifically allotted to the provision or maintenance of the episcopal residence.

(2) The provisions of section 5 of the Ecclesiastical Commissioners Act, 1866, shall extend and apply to any instrument sealed by the Commissioners for effecting any augmentation as aforesaid. 29 & 30 Vict. c. 111.

Power to appropriate endowment of a benefice in respect of improved income arising under the Ecclesiastical Leasing Acts.

4. Any scheme of the Commissioners under the provisions of the Ecclesiastical Leasing Acts for directing the payment to the Commissioners of a portion of the improved income of any benefice may provide that the appropriation of such portion of the said income be effected by the transfer to the Commissioners of some specific part or parts of the endowment of the benefice, and in such case the real or personal property specified in the scheme and thereby proposed or directed to be transferred to the Commissioners shall upon the scheme becoming effectual or at such later time (if any) as shall be appointed by the scheme for the transfer to take effect vest in the Commissioners without any further conveyance or assurance and be held by them as property the income from which is to be carried to their common fund.

Additional powers as to application of money of a benefice arising under the Ecclesiastical Leasing Acts.

5.—(1) The Commissioners shall have power at any time at the request of the incumbent to lay out the whole or any part of any consideration money received and held by them for any benefice as the result of a transaction effected under the Ecclesiastical Leasing Acts in or towards redeeming any annual or other periodical sum charged in perpetuity upon the endowments of the benefice or upon any part of such endowments including the parsonage house, or in or towards defraying the cost of works of improvement to the parsonage house, glebe or glebe buildings of the benefice, or the cost of the extinguishment of any manorial incidents to which the glebe or other property of the benefice may be subject: Provided that this power shall only be exercised if in the opinion of the Commissioners such expenditure will be to the permanent advantage of the benefice and with the consent of the patron or patrons whose consent is required to any sale under the Ecclesiastical Leasing Acts of any land of the benefice.

(2) The powers conferred by this section shall be exerciseable notwithstanding that the endowments of the benefice may be subject to any mortgage, charge or other incumbrance in respect of which the incumbent is liable or the income of the benefice is applicable for the payment of any principal money or interest or any annual or other periodical sum.

Power to sell rentcharges belonging to an ecclesiastical corporation or to a benefice.

6.—(1) The Ecclesiastical Leasing Acts shall be construed and have effect as if the power of sale thereby conferred included power to agree to and carry out the release of the whole or any part of any rentcharge rent or other periodical sum whether payable annually or otherwise forming part of the endowment of an ecclesiastical corporation or of a benefice. And for the purpose of such release the corporation or the incumbent of the benefice shall have power to agree with the owner or owners of any land or other property charged with such rentcharge rent or sum for any apportionment necessary or proper for giving full effect to the agreement for release: Provided that no such apportionment shall be made except with such consents and after such notices as are for the time being required in the case of a sale under the said Acts of land belonging to the corporation or the benefice as the case may be.

(2) This section shall not apply to tithe rentcharge or to any corn-rent modus or other sum payable in lieu of tithe.

Discharge from certain charges of property of a benefice disposed of under the Ecclesiastical Leasing Acts and substitution of rights against the proceeds.

7.—(1) On the sale of any property of a benefice under the powers conferred by the Ecclesiastical Leasing Acts as extended by this Measure the assurance giving effect to such sale shall (unless therein otherwise expressly provided) operate to discharge the property sold from all such charges or other incumbrances as are hereinafter mentioned to which the property of the benefice generally or any part of such property including the property sold shall have been subject at the date of the assurance, and in such case the purchase money or other the consideration received for the sale, or the investments or property representing the same shall become subject to any charge or incumbrance from which the property sold shall have been so discharged in like manner as nearly as circumstances will permit as the property sold was previously subject thereto, but not so as to prevent or prejudice the exercise of any powers conferred on the Commissioners by the said Acts or this Measure in respect of the improved income of the benefice: Provided that the provisions of this subsection shall not apply to land tax or to a land tax redemption charge or to tithe rentcharge or to any corn-rent modus or other sum payable in lieu of tithe.

(2) For the purposes of subsection (1) of this section " sale " shall include an exchange under the Ecclesiastical Leasing Acts and a release effected under section 6 of this Measure, and the provisions of the said subsection shall apply with all necessary or proper modifications to any such exchange or release.

(3) The charges or other incumbrances referred to in subsection (1) of this section shall subject as hereinbefore provided include—

(*a*) any mortgage or charge for securing money payable to the Commissioners;

(*b*) any annual or other periodical sum payable to the incumbent of any other benefice or to any other ecclesiastical corporation aggregate or sole;

(*c*) any other charge or incumbrance in respect of which the person entitled to release or discharge the same shall have given his consent in writing, either generally or in relation to any specific transaction by a document signed by him and approved by the Commissioners under their seal, to the provisions of subsection (1) of this section being treated as applicable to such charge or incumbrance, and in any such case a statement to the effect that such consent has been given contained in any deed of assurance of the property so sold or disposed of which is sealed by the Commissioners shall in favour of any person claiming under the assurance be conclusive evidence of the facts so stated.

Provisions in relation to the

8.—(1) During the vacancy of a benefice the bishop of the diocese may with the like consents as are required by the Ecclesiastical Leasing Acts and in other respects

Ecclesiastical Leasing Acts in case of the vacancy of a benefice or see.

in accordance with the provisions of those Acts exercise in place of the incumbent of the benefice all or any of the powers conferred on an incumbent by the said Acts as extended by this Measure.

(2) During the vacancy of any see or during such time as any bishop is by reason of any disability unable to exercise in person the functions of his office any notice required to be given to the bishop pursuant to the provisions of the Ecclesiastical Leasing Acts or any amendment thereof shall be given to the archbishop of the province in which the diocese is situate.

(3) Where by reason of the vacancy of a benefice a bishop shall act in place of an incumbent under subsection (1) of this section a statement to the effect that such vacancy is existing contained in any assurance or other instrument executed or signed by the bishop so acting for the purposes of the transaction in which he so acts shall in favour of all persons interested in the transaction be conclusive evidence of the fact so stated.

Contributions towards costs of legal proceedings.

9. Section 4 of the Ecclesiastical Commissioners Measure, 1926, shall be repealed, and the following provisions shall have effect:—

(1) Subject to the provisions of subsections (3) and (4) of this section the Commissioners may at their absolute discretion pay out of their Common Fund the whole or contribute any part of the costs and expenses incurred—

(*a*) by the bishop of any diocese or by anyone authorised under the provisions of any Statute or Measure for the time being in force to proceed in the bishop's stead in or in relation to or directly or indirectly arising out of legal proceedings in any court taken or defended or proposed to be taken or defended (and notwithstanding that the proposed proceedings are not eventually taken or defended as the case may be) by the bishop or by the person acting in his stead for the correction of offences whether against morality or the laws ecclesiastical (not being questions of doctrine or ritual) and for the promotion of the efficient discharge by clergymen of their ecclesiastical duties; or

(*b*) by any clergyman in relation to any proceedings or proposed proceedings of which he or his acts or omissions shall or may be the subject being proceedings of the nature referred to in the last preceding paragraph.

(2) Legal proceedings shall for the purposes of this section include proceedings of or before a Commission appointed under the Church Discipline Act, 1840, or any Measure for the promotion of the efficient discharge of ecclesiastical duties. 3 & 4 Vict. c. 86.

(3) No payment shall be made under the provisions of subsection (1) (*a*) of this section unless the bishop or the person acting in his stead shall have first submitted the matter to an official, appointed by the Archbishops of Canterbury and York jointly and shall have obtained his approval in writing of the course proposed to be taken by the bishop or such other person as aforesaid as the case may be and unless the solicitor instructed to act in the proceedings on behalf of the bishop or other person as aforesaid shall have been first approved for that purpose by the Commissioners.

(4) The Commissioners with the concurrence of the Archbishops of Canterbury and York may from time to time make regulations as to the procedure for or in connection with the submission of matters to the official so appointed and as to the information to be furnished to him for the purpose of his consideration of any matter and generally as to payment of costs and expenses under this section and anything incidental thereto, and may from time to time vary or revoke any such regulations for the time being in force.

(5) Any regulations made pursuant to the last preceding subsection and any variation or revocation of the regulations for the time being in force shall come into operation upon the publication in the London Gazette of an instrument under the seal of the Commissioners certifying

that such regulations or (as the case may be) that such variation or revocation has been made or effected.

(6) The provisions of section 5 of the Ecclesiastical Commissioners Measure, 1926, shall apply and have effect in relation to any official to be appointed by the two Archbishops in accordance with the provisions of subsection (3) of this section, and the official now holding office under the said Measure shall be deemed to have been appointed for the purposes of this Measure.

Registration of stock transferred by scheme.

10.—(1) Where in pursuance of the provisions of any scheme under this Measure any stock is transferred to the Commissioners the production of a copy of the scheme sealed with the seal of the Commissioners shall be a sufficient authority to any company in whose books is standing any stock so transferred to register or inscribe the stock in the name of the Commissioners.

(2) In this section—

"Company" includes the Bank of England and any company or person keeping books in which any stock is registered or inscribed;

"Stock" includes any share, annuity or other security.

Interpretation.

11. In this Measure "benefice" shall include any benefice within the meaning of the Ecclesiastical Leasing Acts.

Application of the Measure.

12. The provisions of this Measure shall not apply to the Channel Islands, nor save as regards section three, to the Isle of Man, but the Measure may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measure, 1931, or either of them, in accordance with that Measure.

Short title.

13. This Measure may be cited as "The Ecclesiastical Commissioners (Powers) Measure, 1936."

THE SCHEDULE.

Section 2.

Birmingham.
Blackburn.
Bradford.
Bristol.
Chelmsford.
Coventry.
Derby.
Guildford.
Leicester.
Liverpool.
Newcastle.
Portsmouth.
St. Albans.
St. Edmundsbury and Ipswich.
Sheffield.
Southwark.
Southwell.
Truro.
Wakefield.
Worcester.